

Statement by Rick Mehta Regarding His Dismissal from Acadia University

SUMMARY

On August 31, 2018, President Peter Ricketts fired me from my position of Associate Professor of Psychology at Acadia University. In the letter that he gave me at my dismissal hearing, he stated that he was firing me on the basis of issues that “were wide ranging and include failure to fulfill [my] academic responsibilities, unprofessional conduct, breach of privacy, and harassment and intimidation of students and other members of the University community.”

President Ricketts’ letter of dismissal states only broad categories of misconduct instead of providing any specific examples of misconduct on my part. The university hid behind vague accusations and opaque investigations, while refusing to spell out their concerns - which were based on filtered complaints. I believe that their stealth charges were pretexts to get rid of me at any cost. The real reason for my dismissal has to do with a culture war that is taking place in universities all over Canada and much of the Western world.

Since the 1990s, the political composition of academia has shifted dramatically to the left. At this time, the political composition of academics is skewed so that the left side of the political spectrum is far overrepresented relative to the right side; in other words, there is a lack of political diversity in modern academia. One consequence of having large groups of people thinking in a similar fashion is that it creates ideal conditions for extreme positions to take root. A second consequence is that it creates ideal conditions in which one group becomes dominant and does not tolerate voices of dissent.

At this time, many universities in Canada (Acadia included) are changing their mission to that of pursuing social justice instead of searching for universal truths. Social justice is focussed on an uncompromising commitment to equity, diversity, and inclusion. In my role as a free speech advocate, I have challenged many of the views that are dominant at Acadia. Rather than refute me, my detractors have instead stated that they are opposed to the manner in which I have expressed my arguments, that I have created a climate of fear on campus and/or social media, and that I have harassed and intimidated those with whom I disagree. In addition, my attempts to defend myself against these accusations have been framed as behaviours that are unethical or immoral.

In the sections that follow, I will first provide background information about myself so that readers can get an idea of how dedicated I am to maximizing students’ academic success. I will then explain the events that led me to become a free speech advocate, the events that led to the MacKay and Hooper Reports that form the basis for dismissing me, and the final events that preceded my precipitous dismissal. I will then end with my closing thoughts as I look to the future in this fight that has national implications for academic freedom in Canada.

BACKGROUND INFORMATION: 2003 - 2017

Until I was fired from Acadia University, I was a tenured professor of psychology who had worked at the university for 15 years. During this time, I taught:

a) two large sections of Introductory Psychology (a total of roughly 300 to 400 students enrolled in a typical year) for almost every year of my career since 2005, the exception being the one year when I was on sabbatical

b) one section of Research Design and Analysis 1 (a course required by all psychology majors; enrolment typically ranged between 80 and 120 students in a given year) since September 2010.

I highlight the above courses because these courses are required courses for all psychology majors and speaks to the department's trust in my abilities to teach these courses for so many years.

I have also taught the following two courses on more than two occasions during my career at Acadia: Physiological Psychology (a second year course; course enrolment is capped at 75 students) and Hormones, Drugs and Behaviour (a third year course; course enrolment is capped at 40 students).

In September 2012, after participating in the Faculty Development Summer Institute (a teaching workshop hosted at the University of Prince Edward Island), I had pronounced success with my teaching between September 2012 and April 2017. In the 2015-2016 academic year, I received the best course evaluations in my career - both in terms of the numerical ratings that the students gave me and the comments that they provided. In the 2016-2017 academic year, I was the recipient of two awards from the Acadia Student Union. These successes were in addition to the emails and cards that I have received throughout my career from current or former students who have thanked me for my commitment to their success.

I was also fortunate in that the messages that I conveyed in class and online seemed to strongly resonate with students. My greatest success on this front occurred when I was quoted for the following statement on the Humans of Acadia Facebook page: "I think the big thing is the little things mean the most. You don't always change the world with a big act, but a million small acts can make a difference." This post generated 501 positive responses ("likes" and "loves"). If one were to search the Humans of Acadia Facebook page, they would be hard pressed to find any faculty member at Acadia who, as of this statement, has generated a more strong positive response.

Outside of teaching, I had a strong service record throughout my career at Acadia; I will describe only the highlights here. I served on numerous committees in my department and at the university. Of these tasks, the one I found most rewarding was being the co-op representative for my department because this position allowed me to give students feedback on the strengths and weaknesses of their presentations on their co-op placements; I also had an opportunity to see the students' presentations improve over time.

I contributed to the discipline of psychology by serving as Chair of the Psychology Division of Science Atlantic (a group that promotes science in the Maritime region of Canada) between 2007 and 2012, and by organizing a successful Science Atlantic Undergraduate Psychology conference that was held at Acadia in 2012.

I contributed to the community by working with two student groups advocating for mental health, giving presentations pertaining to mental health at a local high school and the opening of the Peer Support Centre at Acadia, and participating in a video on suicide awareness (https://www.youtube.com/watch?v=PbiHJ_zOiz4).

My research area was in cognition, specifically decision making. The majority of my research productivity was in the form of conference presentations as opposed to publications in peer-reviewed journals. An inspection of my academic resume would reveal that my strengths were in my teaching and service, but not in my research productivity.

With regard to my teaching, I believe that my success was due to my commitment to helping students reach their maximum academic and personal potential. In the remaining part of this section, I will explain what made me unique as a teacher. For brevity, I will focus on my efforts at maximizing students' academic potential. I will also omit the honours students that I have supervised and the graduate student committees on which I have served - although I will mention that at the time that I was fired, a) I was supervising one graduate student who was half-way through her Master's degree in Clinical Psychology and b) I was about to start supervising a new Master's student. Both of these students will need to find new supervisors in order to complete their degrees.

In my courses, the first priority for me was to ensure that students understood the content that I wanted them to learn. To do this, I repeatedly asked for and gave feedback to my students on how well they were mastering the concepts. In my courses, I would often review one example and ensure that students understood the example that I reviewed. I would then give students a problem to work on and, after ensuring they had enough time to work on the problem, would provide feedback on what was the correct answer and why that answer was the correct one. Lastly, I would ask if I had overlooked anything or if there was a perspective I had missed before I continued covering course content. This was a technique that I used in all of my classes.

In the "Research Design and Analysis 1" class, which is a required course that has both a high failure rate and a low attendance rate, I structured the course so that 4% of students' final grade came from completing written participation exercises. The intention was to help address the issue of low attendance and provide students with an informal form of feedback in order to help them succeed on the exams that they wrote for me.

In every week in which a midterm was not held, I gave out one exercise in which I expected that students would attempt the problem that I had given them to the best of their ability. As long as I had the impression that students had made an honest attempt to complete the problem I

had provided, they attained a point that went towards their participation grade. After class was over, I provided written feedback to each student to help them improve their response. At the next class, I returned the participation exercises to the students and reviewed any themes that emerged when I was “marking” the exercises so that students knew where they needed to focus their efforts for their upcoming exams. I noticed that attendance in my classes improved after I started implementing the participation exercises: Before I implemented them, class attendance appeared to be in the 40% range, but after I implemented them, attendance typically ranged between 60% and 80%. The grades seemed to vary depending on the composition of the class in a given year.

Finally, in almost all of the courses that I have taught since September 2012, I have hosted “help sessions” prior to each exam so that students could meet with me in an informal setting to ask me questions about the course content. My reasoning was that students often find it intimidating - especially in their early years of university - to go to their professors’ offices. To reduce this perceived barrier, I held sessions outside of regular business hours (e.g., if the exam was going to be written on a Wednesday, I held the help session from 5 to 7 pm on the Tuesday evening prior the exam) and at a neutral public location on campus so that the students and I could meet simply as human beings communicating with one another. Unlike my office hours, which were poorly attended, my help sessions were well attended.

BACKGROUND INFORMATION (2017 - 2018): BECOMING A FREE SPEECH ADVOCATE

Between 2015 and 2017, I was troubled by the protests and cancellation of talks at universities that I read about in the news with seemingly increasing frequency. I thought that this phenomenon was more of an issue for the United States than Canada until I started following the controversy involving Dr. Jordan Peterson (University of Toronto) and his stance regarding Bill C-16.

In the early part of 2017, Acadia University was searching for its next President. On March 27, I submitted the concerns that I had with Dr. Ricketts being the next President of Acadia University in a letter that I submitted to the Presidential Search Committee. The major concerns that I will focus on here were twofold: 1) unlike the other candidate, he had not emphasized the importance of critical thinking or listening to a diverse range of perspectives in order to build consensus before making any decisions, and 2) he stated that he planned to commit Acadia to social justice. I was concerned about the prospect of a university committing itself to any ideology and the implications that it had for free speech. However, my letter had little impact: Dr. Ricketts became the President of Acadia University.

While I was concerned about Dr. Ricketts becoming the President of Acadia, I thought that I might be able to change the administration’s mind by organizing and leading an ongoing discussion on free speech among the faculty at Acadia. After classes and exams were over in the Winter 2017 semester, I organized a panel discussion on free speech, which was held on May 3. The video for the panel discussion is posted at

https://www.youtube.com/watch?v=0rRfkDJP_NQ&t=5272s

The panel consisted of Dr. Erin Crandall (Acadia), Dr. Mark Mercer (Saint Mary's University), Dr. Marc Ramsay (Acadia), and Dr. Stephen Perrott (Mount Saint Vincent University). The first hour consisted of the panel discussion and the second hour consisted of questions and answers with the panel.

There were two points that stood out to me from the event. The first was that early in the discussion, Dr. Ramsay said that he did not believe that there was a free speech crisis at university campuses, but later in the discussion he said that he self-censors and that he was worried about colleagues at other universities watching the video. The second was the manner in which the people who were opposed to free speech expressed their opposition during the question and answer period. That is, rather than asking questions, they appeared to go on rants that were expressed incoherently, and often in a rude and/or an aggressive manner.

While I did receive lots of positive feedback from many of my colleagues about the panel discussion, the ongoing discussion that I hoped would occur on campus over the summer never materialized. Instead of letting the issue go, I decided to give a comprehensive talk on the topic of free speech on September 27, 2017, which I titled "Free Speech in Universities: Threats and Opportunities". The talk is posted at <https://www.youtube.com/watch?v=u73kjWyRRWU&t=553s>. In the talk, one of the points I raised is that the political composition of the professoriate has shifted dramatically to the left since the 1990s and that this shift has implications for the types of research questions that are asked, the way that data are interpreted, and the way in which dissenting views would be tolerated in an academic environment. I concluded the talk by recommending that Acadia adopt the University of Chicago's Principles of Free Expression.

The goal behind the talk was to produce a document in video form that was thoroughly researched and therefore could be submitted to a body on campus such as Senate, yet also be accessible to a lay person in the general public. As well, the approach I took was to win over people who were opposed to free speech, as opposed to produce a talk that would preach to people who already agreed with me. In other words, I was diligent about taking a balanced approach when I researched the topic and presented my talk. Finally, to ensure that people could verify the information that I was providing for themselves, I included the slides that I used and a reference section that was 20 pages long when I posted the video onto my YouTube page; I also circulated these materials to the faculty and staff at Acadia.

From an objective perspective, the talk that I gave was a success. There were 46 to 50 people (mostly students) who attended the talk and another 256 people who listened to a livestream of the talk that was hosted by Axe Radio (a campus radio station). This would be the equivalent of having the largest lecture hall at Acadia's campus being full on a night that classes were being held.

Based on the reaction that I received from the students and community members in the audience, my subjective impression was that the talk went smoothly. However, I received rude

responses from two of the three faculty members who were in attendance. Dr Jeffrey Sachs (Politics) seemingly discounted my entire talk because he had an issue with two slides (out of a total of 71 slides) I had presented. Dr. Eva Curry (Math & Statistics) discounted my entire talk because, according to her, all I presented was anecdotal evidence.

After the talk, I sent an email message to a list that goes to the faculty and staff at Acadia in which I stated that I wanted my talk to be considered an official submission to Acadia's review of its strategic plan. But this was to no avail. I received one email message from a colleague saying that they were going to submit their own counterproposals. At the time, I did not understand why they copied Dean Hooper and a member of Women in Science and Engineering (WISE) - Acadia on this message, but I have since learned that copying a superior (in this case, the Dean) on a message is a way for employees to ask their superior to discipline their colleague.

On November 15, 2017, Dr. Curry sent out an email message to Acadia-FYI in which she said that my talk was "in many ways, the worst violation of academic integrity that I have seen at Acadia". This point is significant because Acadia-FYI is a public forum in which email messages on this list go primarily to faculty and staff who subscribe to the list, but also to some students, retirees, community members, and alumni. In other words, my integrity was being questioned in an open forum.

In my response to Dr. Curry's message, I noted that all she had done was make allegations against me but did not provide evidence for them (e.g., "You misrepresented opposing viewpoints and did not present all arguments in good faith."). I also noted that her first allegation, that I had not provided any supporting sources or bibliography, was outright false because I had circulated my slides and reference section to the faculty and staff email list while I was waiting for the video of my talk to be ready to post. I did not respond to the rest of her allegations because they were just as preposterous as her first, and presumably her strongest, allegation.

In the next two sections, I will outline in turn a) the major events that preceded the investigation by Professor Wayne MacKay and b) the major events that preceded the inquiry by Dean Jeff Hooper. These two Reports formed the basis for my dismissal.

EVENTS LEADING TO MACKAY REPORT

The main point for this section is to provide evidence that supports my belief that the major events that led to the administration commissioning the MacKay Report were complaints from the women's groups on campus, e.g., WISE-Acadia and faculty in the Women and Gender Studies program at Acadia.

In mid-December 2017 and early January 2018, I sent email messages to the Acadia-FYI distribution list in which I criticized views that are dominant at university campuses in the hopes that my emails would lead to a meaningful discussion. Unfortunately, the discussion that

I was hoping for never materialized. In the paragraphs that follow, I describe the content of the email messages that I sent out and the most noteworthy responses that I received to each message.

On December 13, 2017, I sent an email message to Acadia-FYI and to the students in both my lab and my courses in which I criticized an article on the topic of gender inequities in academia that was published in the student newspaper (the Athenaeum). Specifically, I stated that there were findings that were overlooked in an article that was published by the Science Editor. The purpose of the email message was to counter the position that the only explanation for wage disparities and discrepant rates of participation between men and women in academia has to do with systemic discrimination. I explained the following five points: 1) that there was evidence to show that lesbians earn more than their heterosexual counterparts and that gay males earn less than their heterosexual counterparts; 2) that one landmark study showed that women were less likely to apply to positions in STEM (Science, Technology, Engineering, and Math) but were more likely to be interviewed and hired; 3) that choices of career and lifestyle play a role in the wage disparities observed between men and women; 4) that the evidence for implicit bias and stereotype threat - the conventional explanations for various inequities - is weak; and 5) that it's possible that overblowing the weak evidence for systemic discrimination is itself a major barrier to women's participation in academia.

One colleague responded to me and copied Vice President Academic (VPA) Heather Hemming on their response. The colleague, who admitted to being a member of WISE-Acadia, stated that I put the student who wrote the article in a position of potential risk and that I "could have easily made [my] points about women in science without naming the student, or even referencing the article." I also was not clear on what my colleague meant when she said that VPA Hemming "ultimately has the responsibility for the students [sic] well being." The message that I received from this college marked the second time that a complaint against me involved a member of WISE-Acadia (as a reminder, the first time was after I sent out an email message to the faculty and staff email list in which I was submitting my talk on free speech for consideration in the upcoming review of the university's strategic plan).

On January 5, 2018, I sent an email message to Dr. Jeff Hennessy and Acadia-FYI in which I outlined my concerns with the university's decolonization initiatives. The response that I received was rude and dismissive. According to the employment lawyer Howard Levitt, the response that Dr. Hennessy gave to me would have gotten him fired if the same type of email exchange had taken place in the private sector

(<https://business.financialpost.com/executive/careers/why-the-debate-over-campus-free-speech-matters-to-employers-everywhere>).

The points that I raise here (e.g., Dr. Curry's rude behaviour at my talk and her attempt to defame me in a public forum; Dr. Hennessy's rude response to me in a public forum) speak to the working conditions that I experienced. I could also provide examples about how other professors have treated me on social media, but am omitting them to reduce the length of my statement.

As bad as my working conditions were after I gave my talk on free speech in September 2017, they further deteriorated after a tweet I had sent to Opposition Leader Andrew Scheer became headline news on January 9, 2018 (<http://thechronicleherald.ca/novascotia/1535294-acadia-professor-defends-beyak's-residential-school-remarks>).

First, I lost the Introductory Psychology and Research Design and Analysis 1 courses that I had taught for years. The only reason I was given was that there were “concerns” about me teaching those courses, but these “concerns” were never explained to me. I appealed the department’s decision to Dean Hooper, but he denied my appeal and stated that discipline was not being invoked in the change to my teaching allocations. I later came across a different explanation when I read an article written on the Aboriginal People’s Television Network web site (<http://aptnnews.ca/2018/02/21/beyak-effect-fighting-anti-indigenous-racism-settler-denialism-canada/>). Specifically, I will quote the following sentence from this article: “Scott Roberts, a spokesperson for the university, says Acadia will not be issuing a public statement regarding Mehta’s comments or behaviour but is ‘currently providing solutions for students who have raised concerns so they are not forced to take a course from Dr. Mehta.’”

Second, I ended up being forced to end my working relationship with the student group known as AUPA (Acadia University Psychology Association). For years, I ran my own help sessions for my courses and AUPA organized student-run help sessions that were independent from my help sessions. In the past, I never had any problems with this set up. However, after AUPA had run their help session on January 29, I received complaints from students in my course saying that they were confused about what content to study for their midterm. I also had to calm one student down over email because they reported that they were “freaking out” and did not know how to prepare for my exam because the information in AUPA’s Help Session Practice Slides made them feel blindsided, even though that student had attended all of my classes. Another student in my course commented that the students who ran AUPA’s help session made adverse comments about my personal and professional integrity. On February 6, 2018, I emailed the two co-chairs of AUPA to let them know that I was ending my working relationship with the student group and why I was doing it; as well, I asked the co-chairs to forward my message to the rest of the AUPA Executive.

Third, VPA Hemming informed me on February 13, 2018, that I was being investigated by Professor MacKay because “The University has a legal responsibility to provide an environment free from discrimination, sexual harassment and personal harassment. The nature and frequency of these complaints and significance of the allegations is concerning for the University, and we have determined the necessity of proceeding to a formal investigation”. Later in the letter, she stated that the university had retained the services of Professor Wayne MacKay (a well-respected professor of law) to conduct the investigation and author what would later be known as the MacKay Report.

I received this letter from VPA Hemming one week after Dr. Anne Quema, the coordinator for the Women and Gender Studies Program at Acadia, had sent out an email message to Acadia-

FYI in which her last sentence stated: “Women’s and Gender Studies et Recherches Feministes Executive Committee stands in solidarity with all those who continue to teach and speak out on university and college campuses in an increasingly chilly climate where boundaries of academic freedom are marked at the intersection of so-called ‘freedom of speech.’”

The above point is relevant because I had expanded on the points I had addressed in my criticism of the article in the student newspaper (gender inequities in academia) when I was covering the topic of Intelligence in my Introductory Psychology classes on January 17 and 19. I then provided a feminist critique of the education system on February 9, in which I presented the argument that our education system works against the interests of boys.

In other words, VPA Hemming informed me I was being investigated one week after Dr. Quema had sent out her email message to a public forum and four days after I had yet again criticized positions taken by faculty in the Women and Gender Studies Program. It is worth noting that I have been the only faculty member on campus who had been an outspoken advocate for free speech.

After I had received the letter of investigation from VPA Hemming, I continued to challenge views that are dominant on university campuses in my Introductory Psychology 2 course. For example, when I covered the chapter on Stress and Health, I stated how the evidence for university classes being “safe spaces” was weak. In the chapter on Social Behaviour, I argued against “white guilt” and “white privilege”, provided evidence for the argument that Black Lives Matter does not speak for the Black community, presented a video featuring Black social commentator Larry Elder discussing issues such as Black on Black crime, and presented evidence for the argument that a major source of the hate and division that is observed in modern society is the identity politics that are being taught in universities in the Western world. I also asserted that the behaviour of the small group of disruptive students who were unwilling to even listen to a different perspective was in line with behaviour exhibited by cult members.

EVENTS LEADING TO HOOPER REPORT

In a meeting held on May 17 2018, Dean Hooper informed me that he had decided to launch an inquiry into my conduct. This inquiry was based primarily on six issues that were brought to his attention by Dr. Rob Raeside (Designated Head for Rick Mehta). The six issues were:

1. Content on a test that was not dealt with in class or in assigned readings
2. Spending excessive time in class on non-class-related-matters
3. Use of non-academic sources for lecture content
4. Making provocative racist and transphobic comments in class to the extent that some students felt too uncomfortable to attend classes
5. I had posted audio recordings of my classes on Dropbox. In the class of February 6, a student loudly proclaimed that she was raped, even though the topic being covered had nothing to do with any form of domestic violence. That same student later complained that I had breached her privacy by posting the recording of the class (including her comment) online.

6. I had posted my appeal of my teaching allocations on Dropbox. Because I had referred to colleagues in my department in that document, Dr. Raeside claimed that my act of posting my document online could be construed as defamatory.

With regard to the first item, I never received any complaints from students about the content on my exams being based on material that I did not cover in class. Students typically first talk to their professor if there is a problem with their test. As well, Dr. Raeside was not able to tell me which item or items did not come from my class or assigned readings. I therefore never understood why Dr. Raeside raised this issue.

With regard to the second and third items, there is no policy at Acadia University that dictates how professors structure their classes, or what sources they can or cannot use for their classes.

With regard to the fourth item, Dr. Raeside never told me what was the comment that I made that supposedly was racist or transphobic.

Finally, with regard to the fifth and sixth items, these issues appear to be legal issues as opposed to ones having to do with me fulfilling my professional responsibilities. If I was breaking any laws, it would have been easy for Dr. Raeside or Dean Hooper to first consult with a lawyer before letting me know which statute I was breaking; we could have then dealt with the issue accordingly.

EVENTS PRECEDING MY DISMISSAL

On August 3, 2018, I received a letter from VPA Hemming that explained the administration's grounds for calling to meet with me to discuss the issue of discipline. The meeting ended up being held on the morning of August 23. That is, I had only 2.5 weeks to prepare to address the allegations in the letter that the administration had the opportunity to work on for roughly 2.5 months (the MacKay Report was submitted on May 14; the Hooper Report was submitted on or about mid-June). The amount of time that I had to prepare for the meeting was further reduced because I received the letter on a Friday before a long weekend. Finally, I could not have my own copy of the Reports unless I agreed to be broadly gagged, which I declined.

In the sections that follow, I first describe my reaction when I read the MacKay and Hooper Reports. I then turn to the content of VPA Hemming's letter of discipline to me.

When I first saw the MacKay and Hooper Reports, I suspected that Acadia University would not want the general public to have access to either of the Reports because even a cursory inspection of these Reports would make most reasonable people conclude that the university had to do away with due process in order to fire me.

For example, a fundamental principle of natural justice is that the accused person has the right to know the identity of their accuser(s). Contrary to this principle, the MacKay Report relies in part on anonymous submissions from both students and faculty. Second, most reasonable

people would expect that a consistent procedure would be used in an investigation, especially when the investigation is being conducted by a well-renowned and respected professor of law. However, a cursory glance at the section that lists the people being interviewed for the MacKay Report reveals that there is one instance in which Professor MacKay interviews a group of three students and one instance where Professor MacKay interviews a group of two faculty members, as opposed to using a consistent procedure in which he interviewed only one person at a time. These are just two examples of how Professor MacKay did away with due process for his Report.

The Hooper Report consists in large part of analyses conducted by colleagues in my department on selected audio recordings of my classes, as opposed to an analysis of all of my classes or a random selection of my classes. The Hooper Report also investigates some of the same issues as the MacKay Report. The fact that multiple people processed the same issues and the fact that there was a lack of explicitly stated procedural guidelines at the outset of the two investigations calls into question the credibility of the two Reports. Because neither Report contains a section that explains how the procedures in each Report ensured fairness and objectivity, I have no choice but to conclude that the analyses and conclusions from the Reports are not credible. This would be analogous to the way a respectable scientific journal in psychology would outright reject a manuscript for review if it did not contain a Method section.

With regard to the content of the VPA's letter, the letter was eight pages long and contained eight broad and unspecified categories of alleged deficiencies on my part. For example, the first category was "Unprofessional and non-collegial conduct directed at students, faculty, and administration, including the creation of a poisoned work environment". This section contained six paragraphs of statements or actions on my part with which the administration disagreed, but VPA Hemming did not explain how my statements or actions created a so-called "poisoned work environment". If the effects of the individual sections were cumulative, the letter did not explain how the different components built on one another to become cumulative.

In another part of her letter, VPA Hemming states that I had made posts on social media that were "potentially discriminatory and/or harassing". I doubt that most reasonable people would understand what VPA Hemming even means when she makes this allegation of me making a post that is "potentially" harassing or discriminatory. When it comes to issues such as harassment and discrimination, most reasonable people view what they read as being binary (harassing or not harassing) rather than on a continuum. Furthermore, there has been no formal finding of me violating the university's policies on harassment or discrimination. I thus do not understand the basis for the VPA's allegation that I have engaged in any type of behaviour that is harassing or discriminatory.

Finally, the VPA's letter gives the impression that she is selective when it comes to interpreting evidence that is used against me. For example, she used one submission from a potential student as evidence that I have damaged the university's reputation, but ignored the submissions from people who support me who have argued that the university's behaviour is damaging its reputation. Furthermore, when I met with the university administration on August

23, I referred to my invitation to and the talk that I gave at the ideacity conference as evidence that I have helped the university's reputation. ideacity is a prestigious conference hosted by the Canadian media icon Moses Znaimer, who is an immigrant of Jewish descent. The talk that I gave (posted at <https://www.youtube.com/watch?v=mH0DIFLBdc4&t=45s>) dealt with the issues of free speech and institutional transparency. Furthermore, a viewing of the video will demonstrate that my talk was well-received.

During the meeting that I had with the administration on the morning of August 23, I started the meeting by saying that I was responding in the spirit of a reasonable academic who has been making fair comment in full context (i.e., I was not misrepresenting myself or others). During the meeting, I responded to all of the allegations in the VPA's letter and offered the following three concessions: 1) I offered to not be Facebook friends with students while they are in my courses so that the administration would not have to deal with potential complaints arising from this source in the future, 2) I said that I was happy to teach the small sections of Introductory Psychology and that the university could now offer students a choice as to whether they wanted to take the course with me or with the instructors teaching the large sections, and 3) I offered to move to another floor or even another building if my colleagues were uncomfortable working with me because I had a different point of view from them regarding social issues. The administration refused to even discuss what I had offered, much less tell me why what I was offering was unreasonable.

In the early evening on August 23, I received a letter from VPA Hemming stating that she was recommending to President Ricketts that I be dismissed. I also received a letter from President Ricketts that same evening stating that my dismissal hearing would be held on August 31.

When the dismissal meeting was held, the President reviewed the process that led to the hearing and gave me a brief overview of the allegations against me. I again reiterated the spirit in which I was attending the meeting and reiterated what I had offered on August 23. The administration again refused to tell me what was unreasonable about my offer or why it was insufficient. As well, the administration did not present me with any counterproposals. Instead, the administration took time to caucus from roughly 1:30 pm to 3:00 pm. At 3 pm, I was informed that the administration had decided to fire me. The President then reviewed the letter that he had written to me. At the end of the meeting, I returned my keys, employee card, and laptop to Safety and Security, and left the university.

In the letter that President Ricketts gave me at my dismissal hearing, he stated that he was firing me on the basis of issues that "were wide ranging and include failure to fulfill [my] academic responsibilities, unprofessional conduct, breach of privacy, and harassment and intimidation of students and other members of the University community." The key point to notice is that he refers to only broad categories of misconduct instead of providing any specific examples of misconduct on my part. Furthermore, he backs his claims by simply referring me to the letter by Vice President Academic (VPA) Heather Hemming dated August 3, 2018, and to the MacKay and Hooper Reports.

CLOSING THOUGHTS

At this stage, my union has filed for arbitration. I am going into the arbitration process with a sense of resolve because the outcome of my case will have national implications for academic freedom in Canada. This is because my dismissal is taking place in the broader context of a culture war that is taking place in academia in which universities are committing themselves to social justice. This change represents a fundamental change to the way in which universities function. If the function of a university is to allow for a free exchange of ideas, then it is imperative to ensure that all views can be expressed, discussed, and debated. I am going into this battle with the hope that the loss of my position can help to lead to a positive change in how Canadian universities are run and operated. It is my sincere wish that my arbitration trial will help Canadian universities continue to be places in which people from all walks of life - including political orientation - can discuss ideas so that we as human beings can make progress on solving the complex problems of our time and the problems that will arise in the future.